

24STCV31888 24STCV31888

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C406%2C08%2F28%2F2026

Source SHA-256: e04a6b54e8966dde86996227a00dec9f0ba4699ed18634ad5a49d2f09f04d024

Case Number: 24STCV31888 Hearing Date: August 28, 2026 Dept: 406

PEOPLE OF THE STATE OF CALIFORNIA ex

rel. ALLSTATE INSURANCE COMPANY,

Plaintiff,

v.

PEGASUS IMAGING LLC, et

al.,

Defendants.

Case No.: 24STCV31888

Hearing Date: August 28, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel further

responses (CRS# 8172)

BACKGROUND

On December 3, 2024, Plaintiff

People of the State of California ex rel. Allstate Insurance Company

filed this action against Defendants Pegasus Imaging LLC, Harry Sarafian, and

Kamran Koocheck, MD. The complaint alleges that Defendants engaged in a medical

insurance fraud scheme.

On April 24, 2026, Plaintiff filed the instant motion to compel further responses to Special Interrogatories, Set One. Defendants filed an opposition on August 17, 2026. Plaintiff filed a reply on August 21, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).) A party “is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.)

DISCUSSION

Defendants do not challenge the substance of the motion or dispute that their responses are deficient in the manner set forth in the motion and separate statement. Instead, Defendants contend that the motion is largely moot because they have provided supplemental responses to most of the SROGs. Defendants further argue that they are willing to answer the remaining SROGs subject to a protective order over financial information.

a. Supplemental Responses

Defendants claim that they served supplemental responses on November 26, 2025. (Khanna Decl. ¶¶ 5-7.) However, Defendants’ counsel did not attach the purported supplemental responses. The notice of errata only attaches the protective order. By contrast, Plaintiff’s counsel attaches supplemental responses that Defendants served on July 13, 2026, after this motion was filed. (Osborn Reply Decl. ¶¶ 2-4, Ex. A-C.) Plaintiff’s evidence shows that the following SROG responses remain defective:

· Kamran

Koocheck: SROG Nos. 1, 5, and 6.

· Harry

Sarafian: SROG No. 11.

· Pegasus

Imaging LLC: SROG Nos. 4, 14, 15, and 25.

b. Protective Order

It is undisputed that the Court entered the stipulated protective order on April 3, 2026. There is no indication that either party has raised any issue with the protective order. Both parties appear to acknowledge that production may be subject to the protective order. The protective order defines the procedure for designating materials as "Confidential" and for challenging such designation. (Khanna Decl., Ex. 1 ¶¶ 2, 6.) Thus, there is no reason for Defendants not to respond to the SROGs.

CONCLUSION

Plaintiff's motion to compel further responses is GRANTED. Defendants shall produce further responses to the following SROGs within 20 days of today:

· Kamran

Koocheck: SROG Nos. 1, 5, and 6.

· Harry

Sarafian: SROG No. 11.

· Pegasus

Imaging LLC: SROG Nos. 4, 14, 15, and 25.